

JANICEK LAW FIRM, P.C.
1100 NE Loop 410, Suite 550 | San Antonio, Texas 78209
Telephone: (210) 366-4949 | Facsimile: (210) 366-4944

CONFIDENTIAL SETTLEMENT COMMUNICATION
PURSUANT TO TEX. R. EVID. 408
THIS COMMUNICATION IS PROTECTED AND INADMISSIBLE AS EVIDENCE

June 2, 2026

**VIA CERTIFIED MAIL, RETURN RECEIPT REQUESTED
AND FACSIMILE: [ACUITY FAX NUMBER]**

[ACUITY ADJUSTER NAME]

Acuity, A Mutual Insurance Company

[ADJUSTER / CLAIMS ADDRESS]

[CITY, STATE ZIP]

Re:	Our Client:	Yudan Huang
	Your Insured:	Melvin Louis Morrow
	Claim Number:	[ACUITY CLAIM NUMBER]
	Date of Loss:	November 6, 2025
	Police Report:	TD0976

Dear [Adjuster Name]:

This office represents Yudan Huang in connection with the above-referenced matter. This letter constitutes a formal **Stowers demand** upon Acuity, A Mutual Insurance Company, as the liability insurer for your insured, Melvin Louis Morrow, arising from the motor vehicle collision described herein.

Please be advised that this demand is made pursuant to the duty imposed upon liability insurers by *G.A. Stowers Furniture Co. v. American Indemnity Co.*, 15 S.W.2d 544 (Tex. Comm'n App. 1929, holding approved), and its progeny. Your insured's exposure far exceeds the applicable policy limits. We therefore call upon you to protect your insured by tendering the full policy limits within **thirty (30) days** of receipt of this letter.

I. LIABILITY

On November 6, 2025, Yudan Huang was operating her vehicle in a lawful and prudent manner when Melvin Louis Morrow, operating a Mack truck, negligently and without warning rear-ended Ms. Huang's vehicle with significant force. The violent impact caused Ms. Huang to be thrown forward and back within her vehicle, causing immediate and severe injuries to her cervical and lumbar spine.

The collision was investigated and documented in Police Report No. TD0976. Liability in this matter is clear and uncontested — your insured drove a large commercial Mack truck directly into the rear of Ms. Huang's vehicle. Under Texas law, a rear-end collision gives rise to a presumption of negligence on the part of the following driver. Your insured failed to maintain a safe following distance, failed to keep a

proper lookout, and failed to control his vehicle — all in violation of the Texas Transportation Code.

II. INJURIES AND MEDICAL TREATMENT

A. Initial Evaluation — Plano Supreme Primary Care

Dr. Yinghui Liu, M.D. | November 7, 2025

The day after the collision, Ms. Huang presented to Plano Supreme Primary Care, where she was evaluated by Qian Su, NP under the supervision of Dr. Yinghui Liu, M.D. She reported immediate onset of neck pain, low back pain, and head pain. Cervical and lumbar x-rays revealed mild degenerative disc disease at C5-6, facet arthropathy at C7-T1, degenerative disc disease at L4-5 and L5-S1, and lumbar facet arthropathy. Ms. Huang was diagnosed with:

- Motor vehicle accident (ICD-10: V89.2XXA);
- Acute neck pain / cervical strain (ICD-10: M54.2);
- Low back pain / lumbar strain (ICD-10: M54.50); and
- Concussion without loss of consciousness (ICD-10: S06.0X0A).

She was prescribed Tizanidine HCl 2 mg and referred for further evaluation and imaging.

B. Diagnostic Imaging — MRI Centers of Texas / Uptown Radiology Associates

Dr. Chad Porter, M.D. | November 22, 2025

On November 22, 2025, Ms. Huang underwent MRI studies of both the cervical and lumbar spine, interpreted by Dr. Chad Porter, M.D., revealing objective, traumatically caused structural injuries:

Cervical Spine:

- **C5-C6:** Grade 1 retrolisthesis with a **2.2 mm posterior disc herniation** encroaching on the anterior thecal sac — consistent with the acute traumatic mechanism of a rear-end impact.

Lumbar Spine:

- **L4-L5:** 2.2 mm posterior disc herniation with thecal sac impression;
- **L3-L4:** 1.5 mm posterior disc herniation.

These findings confirm structural disc injuries at multiple levels caused by the impact inflicted by your insured.

C. Spine Specialist Care — Momentum Spine & Joint

Dr. Zeshan Chaudhry, M.D. & Dr. Kamlesh Sisodiya, M.D. | November 17, 2025 – January 21, 2026

Ms. Huang was evaluated by board-certified spine specialists on three occasions. Dr. Chaudhry performed her initial evaluation on November 17, 2025; Dr. Sisodiya provided follow-up care on December 1, 2025 and January 21, 2026. The physicians reviewed her MRI studies, confirmed traumatic cervical and lumbar disc herniations, and determined that the following interventional procedures are medically necessary:

Cervical Spine:

- Bilateral Medial Branch Block (MBB), C4-C5 / C5-C6
- Bilateral Radiofrequency Thermal Coagulation (RFTC), C4-C5 / C5-C6

Lumbar Spine:

- Bilateral Medial Branch Block (MBB), L4-L5 / L5-S1
- Bilateral Radiofrequency Thermal Coagulation (RFTC), L4-L5 / L5-S1

D. Prescription Medications — ASP Cares Pharmacy | November 17, 2025

- Lidocaine 5% Topical Patch; and
- Meloxicam 7.5 mg (anti-inflammatory).

E. Physical Therapy — ATI Physical Therapy | November 26, 2025 – February 27, 2026

Ms. Huang completed twenty-two (22) physical therapy sessions over three months. At initial evaluation she scored **46% on the Neck Disability Index (NDI)** — "Significant Disability" — reporting difficulty performing work duties, managing household tasks, engaging in sustained activities, and sleeping. Through diligent rehabilitation she improved to a 24% NDI score at discharge on February 23, 2026. The underlying structural disc injuries persist and continue to require the interventional procedures recommended by her spine specialists.

III. MEDICAL EXPENSES

A. Past Medical Expenses

Provider	Service / Date(s)	Amount
Plano Supreme Primary Care (Dr. Yinghui Liu, M.D.)	Initial Evaluation November 7, 2025	\$393.00
Momentum Spine & Joint (Dr. Chaudhry / Dr. Sisodiya)	Office Visits (x3) 11/17/2025 – 01/21/2026	\$2,273.10
MRI Centers of Texas	Cervical & Lumbar MRI November 22, 2025	\$5,188.00
Uptown Radiology Associates	Professional Radiology November 22, 2025	\$1,190.00
ASP Cares Pharmacy	Lidocaine Patch / Meloxicam November 17, 2025	\$498.00
ATI Physical Therapy	PT – 22 Sessions 11/26/2025 – 02/27/2026	\$16,016.48
TOTAL PAST MEDICAL EXPENSES		\$25,558.58

B. Future Medical Expenses

Ms. Huang's treating physicians have determined the following interventional procedures are medically necessary as a direct result of injuries caused by your insured:

Procedure	Estimated Cost
Cervical Medial Branch Block — Bilateral C4-C5 / C5-C6	\$16,146.50

Cervical Radiofrequency Thermal Coagulation — Bilateral C4-C5 / C5-C6	\$35,176.50
Lumbar Medial Branch Block — Bilateral L4-L5 / L5-S1	\$15,058.00
Lumbar Radiofrequency Thermal Coagulation — Bilateral L4-L5 / L5-S1	\$34,592.50
TOTAL FUTURE MEDICAL EXPENSES	\$100,973.50

TOTAL SPECIAL DAMAGES: \$126,532.08

IV. GENERAL DAMAGES

Beyond her quantifiable economic losses, Ms. Huang has suffered and continues to suffer substantial non-economic damages. She endured months of acute pain in her neck and back following a traumatic rear-end collision with a large commercial Mack truck — suffering disrupted sleep, inability to perform normal household tasks, and significant difficulty meeting her work and daily obligations, all while undergoing months of physical therapy, multiple physician visits, diagnostic imaging, and pharmacological treatment.

The persistent disc herniations at C5-C6, L3-L4, and L4-L5 — confirmed by MRI — will require invasive interventional procedures. Ms. Huang's general damages, including past and future physical pain and suffering, mental anguish, and loss of enjoyment of life, are substantial and, combined with her special damages, result in total exposure that greatly exceeds your insured's policy limits.

V. STOWERS DEMAND

Pursuant to *G.A. Stowers Furniture Co. v. American Indemnity Co.*, 15 S.W.2d 544 (Tex. Comm'n App. 1929, holding approved), a liability insurer has a duty to exercise ordinary care in deciding whether to settle a claim within policy limits when a reasonably prudent insurer would do so. That duty is triggered when: (1) the claim is within the scope of coverage; (2) demand is made within policy limits; and (3) the terms of the demand are such that a reasonably prudent insurer would accept. All three conditions are plainly met here.

Ms. Huang's total documented and anticipated damages — past medical expenses of \$25,558.58, future medical expenses of \$100,973.50, and substantial general damages — **far exceed the applicable policy limits** of your insured, Melvin Louis Morrow.

Accordingly, we hereby make formal demand upon Acuity, A Mutual Insurance Company, for the **full available bodily injury liability limits** under all applicable policies insuring Melvin Louis Morrow in connection with the November 6, 2025 collision — in the amount of **\$[POLICY LIMITS]**.

This demand will remain open for **thirty (30) days** from the date of receipt of this letter, expiring no later than **[DEADLINE DATE]**. This demand is unconditional, requires no release of any party other than Melvin Louis Morrow, and requires only a full tender of the applicable policy limits.

Should you fail to tender the policy limits within the time provided, Acuity will have breached its duty to its insured under *Stowers* and its progeny, including *American Physicians Ins. Exchange v. Garcia*, 876

S.W.2d 842 (Tex. 1994). Acuity will then be exposed to liability for any judgment rendered against its insured in excess of the policy limits, including post-judgment interest. We urge you in the strongest possible terms to protect your insured by accepting this demand before the deadline expires.

VI. DOCUMENTS ENCLOSED

1. Medical Records — Plano Supreme Primary Care (Dr. Yinghui Liu, M.D.)
 2. Medical Bills / Affidavit — Plano Supreme Primary Care
 3. Medical Records — Momentum Spine & Joint
 4. Medical Bills — Momentum Spine & Joint
 5. MRI Report — MRI Centers of Texas (Dr. Chad Porter, M.D.)
 6. Medical Bills — MRI Centers of Texas
 7. Professional Radiology Bill — Uptown Radiology Associates
 8. Pharmacy Bill — ASP Cares Pharmacy
 9. Physical Therapy Discharge Summary — ATI Physical Therapy
 10. Physical Therapy Bills — ATI Physical Therapy
 11. Procedure Cost Estimates — Momentum Spine & Joint (Future Treatment)
 12. Police Report No. TD0976
-

Please direct all correspondence regarding this matter to our office. Time is of the essence. We strongly encourage you to present this demand to your supervisors and to your insured without delay.

Respectfully submitted,

JANICEK LAW FIRM, P.C.

[Attorney Name]

State Bar No. [BAR NUMBER]

1100 NE Loop 410, Suite 550

San Antonio, Texas 78209

Tel: (210) 366-4949 | Fax: (210) 366-4944